

Stereo. H C J D A-38.
JUDGMENT SHEET
LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

(W.P. No.11202 of 2023)

Mst. Tahira Akhtar

Versus

The Chancellor, Women University Multan/Governor of
Punjab, etc.

J U D G M E N T

Date of hearing:	22.05.2025
Petitioner by:	Sh. Jamshed Hayat, Advocate.
Respondents-Women University by:	Rana Muhammad Asif Saeed, Advocate. Mr. Muhammad Asif Ali, Law Officer, Women University, Multan.

MALIK JAVID IQBAL WAINS, J.: This single judgment shall decide the instant writ petition along with Writ Petition No.7992 of 2022, as both petitions involve the same parties and raise identical questions of fact and law.

2. Brief facts of the petitions are that the respondents-University invited applications for the posts of Registrar, Treasurer and Controller of Examinations through an advertisement dated 19.03.2021, and in pursuance whereof, the petitioner applied for the post of Registrar. The meeting of the Search Committee, already constituted by the Vice Chancellor, was held on 03.01.2022 for the recruitment process of these statutory posts, which after following due process, recommended the name of the petitioner to the Syndicate for her appointment as Registrar. During 31st meeting of the Syndicate held on 12.01.2022, the recommendations of the Search Committee were examined; however, the matter was referred back to the Committee to deliberate its recommendations in the light of new facts/information communicated to the University. The case of the

petitioner was again examined by the Search Committee in its meeting held on 03.02.2022, whereby in the light of new facts and circumstances (mentioned in the committee meeting, and need not to be reproduced), said committee had decided to withdraw its earlier recommendations and further recommended as under:-

“ii. That the advertisement dated:19.03.2021 for the appointment for the post of Registrar lacked clarity with regard to the lump sum package, rather than pay protection etc. meant for regular employee as is enshrined in contract appointment policy, Government of Punjab dated: 29.12.2004, therefore, this disparity need to be clarified to avoid any complication.”

3. The 33rd meeting of the Syndicate was held on 28.04.2022 wherein the recommendations of the Search Committee were also examined, however, being not found the prescribed/approved manners and terms & conditions for the post of Registrar and other statutory posts, the entire recruitment process against the advertisement dated 19.03.2021 was declared null and void and it was decided to re-advertise the posts. The relevant para of the Syndicate decision is hereby reproduced as under: -

“Decision: The House inquired about the approved/prescribed manners and terms & conditions for the appointment of statutory posts as per Section 14(1), 15(1) and 16(1) of WUM Act 2010. The Chair informed the House that the University has not prescribed and approved manner and terms & conditions as required by the Act and this is an oversight.

The House deliberated all aspects of this matter and unanimously observed that the whole procedure for the appointment of statutory posts was not in cognizance with the Act of the University. The House unanimously declared the whole recruitment process against advertisement dated 19-03-2021 as “Null & Void” and decided that no recommendation for appointment of statutory posts can be placed before the Syndicate without prescribed/approved manners and terms & conditions. Furthermore, the House unanimously decided that these statutory posts will be re-advertised once the prescribed manners and terms & conditions as per sections 14(1), 15(1) and 16(1) of WUM Act, 2010 are decided and duly approved by the Syndicate as the competent authority.”

4. The petitioner challenged the minutes of the meeting of the syndicate dated 12.01.2022 and 28.04.2022 by filing a writ petition

No.7544/2022 before this Court, which was remitted to respondent No.1/Chancellor in shape of revision for its decision in terms of Section 10(5) of the Women University, Multan Act, 2010 (hereinafter “**Act, 2010**”), however the same was dismissed vide order dated 23.11.2022 in the following terms:

“7.I have carefully examined the proceedings of the meetings of the Syndicate dated 12th January, 2022 and 28th April, 2022. I am of considered opinion that nothing contained in decisions of the Syndicate dated 12th January 2022 and 28th April 2022 is contrary to the law or against the interest of academic excellence of the University, religious or cultural ideology, or national integrity. That said, the revision petition of Mrs. Tahira Akhtar referred to this forum by the Hon’ble Lahore High Court, Multan Bench, Multan in terms of Section 10(5) of the Women University Multan Act 2010 merits no consideration thus liable to be dismissed.

8. For what has been discussed above, I, in exercise of powers conferred upon me, in terms of Section 10(5) of the Women University Multan Act 2010, am minded to dismiss the revision petition of Ms. Tahira Akhtar being devoid of merit. The University, is however, advised to get all the legal formalities completed and make sure that regular incumbent to the post of Registrar is appointed without further loss of time.”

5. Being aggrieved of the orders of the syndicate and Chancellor of the University as well as advertisement published on 22.05.2022 for the Post of Registrar, the petitioner filed these petitions.

6. Learned counsel for the petitioner contends that the respondents-University unlawfully declared the recruitment process including advertisement dated 19.03.2021 for the post of Registrar and other statutory posts as null & void on a false pretext that no prescribed terms and conditions exist for such appointments. He further submits that all terms and conditions for appointment of the post of Registrar have been provided in the Act, 2010 and same are envisaging in the advertisement also. Learned counsel adds that despite this decision, a subsequent advertisement was issued for the appointment of statutory posts dated 04.08.2022 without formally notifying any such procedure as pointed out in the 33rd Syndicate meeting, which shows mala fide of the university-syndicate. He

argues that the revision filed before respondent No.1/Chancellor was dismissed vide order dated 23.11.2022 without considering the actual facts and circumstances of the case, which order is contrary to law.

7. Learned counsel for the petitioner further argues that once the petitioner was duly recommended by the Search Committee, her legitimate expectation to be appointed was frustrated without lawful justification. He submits that the Syndicate acted beyond its jurisdiction by referring back the matter to Search Committee, despite the fact that same had reached its logical conclusion, thereby violating the principles of fairness and finality. Learned counsel further contends the petitioner participated in the selection process in good faith, relying on the terms set forth in the University's advertisement, and the University, having initiated the process and shortlisted her through a final recommendation, cannot now resile from its earlier position to the detriment of the petitioner.

8. Conversely, learned counsel for respondents-university opposed the contentions raised by learned counsel for the petitioner. He submits that mere recommendations by the Search Committee do not confer any enforceable right of appointment upon the petitioner. He further submits that the Syndicate, as the appointing authority, retains discretion to revisit or decline recommendations if statutory compliance or institutional integrity is at stake. Learned counsel adds that after coming into knowledge the new facts about the petitioner, the Syndicate decided to refer the matter back to the Search Committee, which after reconsideration decided not to recommend the petitioner for this post. He argues that the re-advertisement of posts following the annulment of the earlier process demonstrates administrative prudence and is aimed at eliminating procedural deficiencies, not mala fide intent. Lastly, asserts that the Syndicate after framing of new prescribed terms and conditions has already forwarded it to the Chancellor for its onward approval.

9. Arguments heard. Record perused.

10. The pivotal questions for determination in these cases are as under:

- i. Whether the Syndicate, being the competent appointing authority, acted within the scope of its lawful jurisdiction in returning the petitioner's recommendation for appointment as Registrar to the Search Committee for reconsideration on the basis of purportedly new material facts that allegedly surfaced after the Committee had concluded its deliberations?
- ii. Whether the Syndicate was justified in declaring the recruitment process for the post of Registrar, initiated pursuant to an earlier advertisement wherein the petitioner was recommended by the Selection Committee, as null and void, and initiated a new process under existed or proposed revised rules and regulations, or whether such actions were taken in excess of its lawful authority?

11. In order to address the above questions, it is essential to examine Sections 14(1), 15(1), and 16(1) of the Act, 2010, which formed the basis of Syndicate decision to declare the entire recruitment process null and void. Section 14 pertains to the appointment of the "Registrar", whereas Sections 15 and 16 respectively govern the appointments of the "Treasurer" and the "Controller of Examinations". However, since the matter in the present petition specifically relates to the post of "Registrar", the discussion hereinafter shall remain confined to the interpretation and application of Section 14 of the Act, 2010, which is hereby reproduced hereinafter: -

"14. Registrar.- (1) The Syndicate shall, on the recommendation of the Vice Chancellor, appoint a Registrar in such manner and on such terms and conditions as may be prescribed.

(2) The Syndicate shall not appoint a person as Registrar unless she possess the prescribed qualifications and experience."

A plain reading of the above provision of law makes it abundantly clear that the authority to appoint a Registrar vests with the Syndicate, but such appointment is contingent upon a recommendation made by the Vice Chancellor, who performs a gatekeeping or advisory role, ensuring that only suitable candidates are brought forward for consideration.

12. The above provision provides mechanism as “in such manner and on such terms and conditions as may be prescribed” means that the process of appointment and the service conditions (such as tenure, salary, benefits, and job responsibilities) must conform to the rules or regulations laid down by the University’s statutes, rules, or governing regulations. This ensures uniformity, transparency, and procedural fairness in appointments, and prevents arbitrary action.

13. The second clause of Section 14 imposes a mandatory bar to the effect that the Syndicate shall not appoint any person unless the person possesses the prescribed qualifications and experience. The use of the term “shall not” indicates a prohibitive and non-discretionary obligation. This makes the qualification and experience a legal prerequisite, not merely a guideline or suggestion. This means that any appointment made in violation of this clause would be ultra vires (beyond legal authority), and therefore liable to be declared void or unlawful.

14. Furthermore, the appointment must be carried out in accordance with the manner and terms and conditions as may be prescribed under the relevant Statute. Sub-section (2) of Section 14 of the Act, 2010 further restricts the exercise of this power by mandating that no person shall be appointed as Registrar, unless she fulfills the prescribed qualifications and possesses the requisite experience, thereby ensuring that the appointment is made on merit and in compliance with statutory requirements.

15. To further understand the procedural framework regarding appointments to statutory posts, particular to the post of Registrar, reference may be made to the Women University Multan Employees (Appointment, Terms and Conditions of Service) Statutes, 2021 (hereinafter “**Statutes**”), which were approved by the Chancellor in exercise of powers under Section 31(3) of the Act, 2010. These Statutes were notified by the Government of the Punjab, Higher Education Department, vide Notification No.SO(Univ)17-2/2020,

dated 22.02.2021. Chapter II of the Statutes deals with appointments and terms and conditions of service, and sub-section (3) of Section 4 specifically pertains to the appointments of Registrar, Treasurer, Controller of Examinations, and Vice Chancellor. The relevant provision is reproduced hereinafter for better understanding:-

“4. Appointment against a post.

(1)

(2)

(3) For appointment of Registrar, Treasurer or Controller of Examinations, Vice Chancellor may through a committee constituted under the Act conduct the process for her recommendation to the Syndicate.”

The above provision of law reflects the procedural mechanism for initiating the appointment of key administrative officers, including the Registrar. It authorizes the Vice Chancellor to constitute a committee under the relevant provisions of the Act, 2010 to conduct the selection process and recommend a suitable candidate to the Syndicate for appointment. This provision governs the manner of initiating and conducting the appointment process. Accordingly, the committee constituted by the Vice Chancellor was legally competent to make recommendations for the appointment of Registrar to the Vice Chancellor, and as per Section 14(1) of the Act, 2010, the Syndicate is empowered to appoint a Registrar on the recommendation of the Vice Chancellor, subject to the terms and conditions as may be prescribed.

16. In view of the above, it becomes clear that while the process for recommending a suitable candidate was validly initiated by the duly constituted Search Committee, the final appointment of the Registrar, under Section 14(1) of the Act, 2010, is subject to the terms and conditions “as may be prescribed.” The expression “prescribed,” has been defined in Section 2(n) of the Act, 2010, which refers to the terms set out in the rules, statutes, or regulations framed under the Act. It was the argument of learned counsel for the petitioner that since the prescribed rules for the appointment of Registrar are

available in the Statutes, 2015 and Act, 2010, to refer the matter back to Search Committee in-fact shows mala fide of the Syndicate. In this context, Section 31(2)(i) of the Act, 2010 expressly empowers the Syndicate to make or recommend statutes pertaining to the scales of pay, method of recruitment, and other terms and conditions of service of officers.

17. Section 20 of the Act, 2010 designates the Syndicate as the “executive body” of the University. In legal terms, this confers both administrative authority and responsibility for the overall governance of the Institution. Section 20(1) of the Act, 2010 provides that the Syndicate shall, take effective measures “subject to the provisions of this Act and statutes” meaning thereby the Syndicate must exercise its powers within the framework provided by law. It cannot act arbitrarily or ultra vires (beyond its powers), but enjoys broad discretion in areas not specifically restricted. Further, the term “take effective measures” imposes a positive legal duty on the Syndicate to ensure, quality in teaching and research, advancement of technological development, encouragement of academic publications and general improvement in academic pursuits. Moreover, sub-section (xx) of Section 2 also gives authority to the Syndicate to appoint members to the various Authorities, committees and bodies in a prescribed manner. This assigns to the Syndicate not merely a passive supervisory role, but an active and dynamic responsibility that encompasses policy formulation, strategic planning, and prudent allocation of institutional resources to achieve the objectives set forth under the Act.

18. Besides above factors, if new material facts or circumstances come to light that were not available to the recommending body at the time of its deliberation and prior to finalizing any appointment, the Syndicate, as the highest executive body of the University or a public Institution, may lawfully intervene to reconsider or withhold approval of the recommendation. This authority is grounded in the principle

that final appointments must reflect not only procedural regularity but also institutional integrity and the most current factual context.

19. According to the doctrine of “Implied Powers”, where a statutory body is given a power (e.g. to appoint a Registrar), it is also implied that the body has the power to seek clarification, request reconsideration, or defer action where new facts come to light, so long as it does not usurp the role of the recommending authority. The statutory body must act in furtherance of public interest and institutional integrity, especially universities, being autonomous bodies, must act fairly and in accordance with their internal regulations, but their decision-making should accommodate transparency and fairness, especially in appointments. The Syndicate, as the appointing authority, is not bound to accept a recommendation blindly. If it learns of new facts affecting eligibility, integrity, or merit, it has the institutional responsibility to prevent improper appointments by sending the recommendation back for review, not by rejecting it outright without due process.

20. The doctrine of “necessary implication” is a well-established rule of statutory interpretation, which mandates that where a statute confers a power, it implicitly confers all powers necessary to carry out that power. This doctrine ensures the functionality and effectiveness of statutory authorities by allowing them to take reasonable actions that are, incidental to their express powers, essential to fulfill their duties, and not inconsistent with the statute itself.

21. If a university syndicate is expressly authorized to appoint a Registrar, the power to suspend, defer, seek clarification, or refer back a flawed recommendation is implied, otherwise, the syndicate would be bound to act on incomplete or flawed processes, undermining its responsibility. It is not in dispute that the Syndicate is the appointing authority, while the Vice Chancellor or Selection Committee functions in an advisory or recommending capacity. In

such institutional frameworks, the law recognizes the principle that the final appointing authority is not a rubber stamp, but rather is expected to exercise independent judgment, subject to rules and legal norms.

22. It has been brought on record that new facts of material importance, relating to the eligibility and past conduct of the petitioner, came to light after the Selection Committee had made its recommendation. The Syndicate, instead of rejecting the recommendation summarily, returned the matter for reconsideration, thereby allowing the Selection Committee to re-evaluate its recommendation in light of the additional information. This act does not amount to overstepping its authority, rather reflects an adherence to the principles of administrative prudence and due process.

23. In legal terms, recommendations made by selection or search bodies, though carrying considerable weight, are not binding upon the appointing authority, if new facts or circumstances emerge prior to the final decision. The law recognizes that where material developments arise after the recommendation, but before appointment, the competent authority is entitled to reassess the matter in light of the updated information. This principle ensures that the final decision is made after a comprehensive evaluation of all relevant and current factors.

24. Selection Committees are responsible for assessing candidates for a position and making recommendations to the decision-making authority, however these are not legally enforceable. These are considered an advisory opinion. Any new information, evidence, or changes in the situation that could influence the decision, can be considered. This could include a candidate's performance after the recommendation, new information about a candidate's background, or changes in the requirements of the position.

25. The decision making authority (e.g. Syndicate) has the ultimate power to make the final selection. It is not bound by the selection body's recommendation and can differ with their opinion based on the totality of the circumstances. This principle ensures fairness and allows for a more complete assessment before a final decision. It also prevents the selection process from becoming overly rigid.

26. In view of the above, this Court is of the considered opinion that the Syndicate acted within its lawful authority in returning the recommendations of the Search Committee for reconsideration, particularly in light of new facts that warranted a fresh evaluation. Such action upholds the integrity of the selection process and does not constitute any illegality or mala fide intention.

27. The record shows that after the recommendations were made by the Selection Committee, certain new facts surfaced during the 31st meeting of the Syndicate, prompting it to refer the matter back to the Search Committee, which, upon reconsideration, resolved not to reaffirm its earlier recommendation in favour of the petitioner. The committee also highlighted procedural and regulatory deficiencies in the advertisement dated 19.03.2021 and recommended that the matter of appointment needs to be deliberations. After deliberations in its 33rd meeting, the Syndicate decided to declare the recruitment process null and void, and simultaneously recommended to formulate the prescribed/approved manners and terms & conditions for appointments to the posts.

28. It is mandatory that university appointments must be governed by clarity of law, regulatory compliance, and the best interests of the institution, rather than expediency. No vested right accrues in incomplete selection processes, and that selection recommendations may be revisited where news facts or legal uncertainties come to light. It is well-settled that mere selection or recommendation by a committee does not create any enforceable or vested right to appointment. The constitutional jurisdiction of this Court cannot be

invoked solely on the basis of such expectancy without a clear statutory entitlement.¹

29. It is evident from a plain reading of Sub-statute (3) of Statute 34 of the University Statutes, 2021, that while it provides that the Registrar, Treasurer, and Controller of Examinations shall be entitled to such perks and privileges as are admissible to Government servants in the corresponding scale of pay, the provision remains limited in its scope. The clause, though valid in so far as it incorporates by reference the benefits structure available to government employees, does not delineate with sufficient clarity the complete perks and privileges including, but not limited to, Basic Pay, Allowances, Pay Protection, and other regulatory norms governing service continuity. In the absence of a comprehensive statutory framework defining these essential terms, ambiguity arises in the administrative application and enforcement of perks and Privileges. This ambiguity, if left unaddressed, may lead to disputes and interpretational inconsistencies, thereby affecting institutional governance and fairness in appointments.

30. It is a well-settled principle in administrative law that statutory provisions relating to service must be unambiguous, transparent, and capable of uniform application. In view of this, the Syndicate, being the competent authority under the University Act to recommend and effect changes in the regulatory framework, was well within its jurisdiction and discretion to propose an amendment to Sub-statute (3) to ensure greater legal clarity and administrative precision in the terms and conditions governing these statutory posts. The proposed amendment, therefore, does not amount to an arbitrary alteration but rather seeks to cure a legislative omission or vagueness, and must be seen as an exercise of lawful and necessary statutory refinement in the interest of good governance.

¹ Zeeshan Anjum and others v. Province of Sindh through I.G. Police and another (2024 P L C (C.S.) 1024)

31. The record unequivocally reflects that the Syndicate, being the executive body of the University under Section 19 of the Act, 2010, in its 33rd meeting dated 28.04.2022, declared the recruitment process and the advertisement for the post of Registrar as null and void. This decision was taken on the basis that prescribed terms and conditions had to be framed prior to initiation of the process. It is further evident that the Syndicate, in exercise of its powers under Section 19 read with Section 31(2)(i) of the Act, in its 34th meeting held on 07.06.2022, recommended amendments in Sub-statute (3) of Statute 34 of the University Statutes, 2021, which provides that “Registrar, Treasurer and Controller of Examinations shall be entitled to such perks and privileges as entitled to Government servants in the corresponding scale of pay,” whereas the relevant proposed amendments are as under:-

“3. In sub-statute (3) of statute 34, following words shall be inserted after words “corresponding scale of pay”:

“The perks and privileges shall be subject to the applicable taxes and include following:

- a. Basic Pay;
- b. Senior Post Allowance;
- c. Entertainment Allowance;
- d. Conveyance Allowance;
- e. Medical Allowance;
- f. House Rent Allowance;
- g. Social Security Benefit Allowance;
- h. Ad-hoc Relief Allowance(s) as admissible;
- i. Qualification Allowance, if admissible; and
- j. Qualification Pay, if admissible.

Provided that Subject to availability of funds and financial health of the University, the Syndicate may grant any other allowance or perk and privilege to Registrar, Treasurer and Controller of Examinations as deemed appropriate by it.

Provided further that government servant appointed against the posts of Registrar, Treasurer and Controller of Examinations shall not be entitled, during contract appointment, to claim any protection of the pay last drawn by her against her substantive post.”

The proviso regarding no claim of protection of pay is in line with clause 2 of sub-section XVIII of section 3 of

Contract Appointment Policy notified by Government of the Punjab vide No.DS(O&M)5-3/2004/Contract (MF) Dated the 29th December, 2004.”

32. Pursuant to Section 31(3) of the Act, the University transmitted the proposed amendments to the Secretary, Higher Education Department, Government of the Punjab, through letter dated 01.07.2022 for onward submission to the Chancellor for approval. Despite issuance of multiple reminders to the Secretary Higher Education Department, the requisite reply of the approval from Chancellor remains pending. The actions of the University Syndicate are found to be within its statutory mandate under the Act, particularly Sections 19 and 31 thereof, and are in furtherance of institutional regulation and administrative transparency.

33. It is further noted that the revision petition filed by the petitioner before respondent No.1/Chancellor under Section 10(5) of the Act, 2010, was dismissed through a speaking order dated 23.11.2022, thereby endorsing the Syndicate’s findings. Since the Syndicate has exclusive jurisdiction under the Act to regulate such matters, including recruitment processes and service conditions, and to frame statutes under Section 31(1) and (2), this Court is not inclined to interfere with its lawful exercise of discretion in the present case.

34. It is a settled law that the High Court, while exercising constitutional jurisdiction under Article 199 of the Constitution, is not expected to act as a selection or appointing authority so as to substitute its own assessment for that of the competent body. This principle was underscored by the Hon’ble Supreme Court in “Dr. MIR ALAM JAN vs. Dr. MUHAMMAD SHAHZAD and others” (2008 SCMR 960), wherein it was held that:

“In exercise of constitutional jurisdiction, the High Court was not expected to perform the functions of a Selection Authority in service matters so as to substitute its opinion for that of a competent authority.”

In the present case, the Syndicate, being the statutorily designated appointing authority under Section 14 of the Act, 2010, acted within its legal framework and institutional mandate and being competent authority to frame statutes under Section 31(1) and (2). This Court, therefore, must remain cautious not to overstep its constitutional limits in questioning administrative discretion duly exercised in accordance with law.

35. In “*Fauji Foundation vs. Shamimur Rehman*” (PLD 1983 SC 457), the Hon’ble Supreme Court reaffirmed that judicial review is corrective and confined to examining the legality of administrative actions, and does not extend to substituting judicial opinion in place of executive wisdom. Courts must refrain from drawing adverse inferences on motives unless mala fide is clearly pleaded and proved. The Syndicate’s actions in the present case, being within its statutory framework, do not invite such scrutiny.

36. It stands established that the Syndicate, being the executive body of the University under Section 20 of the Act, 2010, was legally competent to withhold or reconsider any recommendation prior to final appointment, reference may also be made to Clause VIII of the advertisement dated 19.03.2021. The said clause unequivocally empowers the University to refrain from filling any advertised post without assigning any reason and to increase or decrease the number of vacancies, subject to the availability of funds and budgetary provisions.

37. As regards the objection raised by learned counsel for the petitioner in W.P. No.7992 of 2022, that the issuance of advertisement dated 22.05.2022 for the post of Registrar and other statutory positions without settling the terms and conditions reflects mala fide on the part of the Syndicate, it has been clarified by learned counsel for the respondent-University that the said advertisement has since been withdrawn. In view of this subsequent development, the allegation of mala fide loses its legal force and is rendered

inconsequential for the purpose of adjudication of the present petitions.

38. In view of foregoing discussions, this Court has observed that the Syndicate acted within its legal competence and in good faith in returning the recommendation to the Committee for reconsideration, and subsequently annulling the recruitment process based on identified irregularities and legal ambiguities. The decision to propose new, well-defined perks & privileges along with procedures for the post of Registrar not only reinforces legal compliance but also reflects a commitment to transparency and institutional integrity.

39. With these observations, both the writ petitions are dismissed, with no order as to costs. It is pertinent to mention here that since the post of Registrar at Women University, Multan is vacant since long, therefore considering the binding directions issued by the Hon'ble Supreme Court of Pakistan in the case of "All Public Universities BPS Teachers Association v. Federation of Pakistan" (2025 SCMR 322), it is directed to the University to initiate and complete the appointment process for the post of Registrar at earliest. The process must be conducted transparently, on merit, and within a reasonable time frame. It is further directed that all tenured posts, including those of statutory, shall not be left vacant or filled on acting-charge basis beyond the period prescribed by law.

40. The Respondent/University transmitted the proposed amendments to the Secretary, Higher Education Department, Government of the Punjab, via letter dated 01.07.2022 for onward submission to the Chancellor for approval. Despite the issuance of multiple reminders to the Secretary, as per stance taken by the Respondents-University before this Court, the requisite response confirming the Chancellor's approval remains pending. This Court directs the Secretary, Higher Education Department, to expedite the process of the proposed amendments and to ensure compliance with

the necessary legal formalities without further delay. Furthermore, this Court expresses its expectation that the Governor of Punjab, in his capacity as Chancellor of Women University, Multan will give due consideration to these proposed amendments in view of sub-section 3 of Section 31 of the Act, 2010, on a priority basis.

41. Office is directed to transmit copy of this judgment to all concerned.

(Malik Javid Iqbal Wains)
Judge

Approved For Reporting

Judge

Usman*